

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

COMPLAINT NO: CC006000000141027

Mr Ankur Garg and Ms Sweta Garg ... Complainants.

COMPLAINT NO: CC006000000192381

Mr Apurva Vinod Pandya ... Complainants.
Mrs Madhuri Apurva Pandya

COMPLAINT NO: CC006000000192384

Chhagani Devi Nahata ... Complainants.
Vijay Raj Nahata

COMPLAINT NO: CC006000000192385

Rohit Vijay Nahata ... Complainants.
Buladevi Nahata

COMPLAINT NO: CC006000000192388

Parshuram G Raturi and Rajni Raturi ... Complainants.

COMPLAINT NO: CC006000000192393

Udit M Sharma and Ritu U Sharma ... Complainants.

COMPLAINT NO: CC006000000192408

Sayed Hifazat Ali ... Complainant.

COMPLAINT NO: CC006000000192433

Branson D'Souza and Neelam D'Souza ... Complainants.



COMPLAINT NO: CC006000000192434

Rupesh Keshav Patole and
Darshana Rupesh Patole

... Complainants.

COMPLAINT NO: CC006000000192437

Imran Shah and Sakina Mustaq Ahmed Shaikh ... Complainants.

COMPLAINT NO: CC006000000192438

Mrityunjay R Dubey

... Complainant.

COMPLAINT NO: CC006000000192440

Fathulla Eftekar

... Complainant.

COMPLAINT NO: CC006000000192466

Nivas Mahadev Patil and Pramila Nivas Patil ... Complainants.

COMPLAINT NO: CC006000000192467

Rajendra Nikam

... Complainant.

COMPLAINT NO: CC006000000192472

Puja Dattaprasad Sadwelkar and
Dattaprasad Sadwelkar

... Complainants.

COMPLAINT NO: CC006000000192474

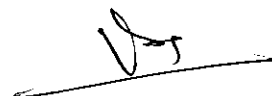
Pankaj Arora and Vishal Arora

... Complainants.

COMPLAINT NO: CC006000000192479

Kinnari Gupta and Rakhi Gupta

... Complainants.



COMPLAINT NO: CC006000000192480

Amit Khandelwal and Mamta Khandelwal ... Complainants.

COMPLAINT NO: CC006000000192481

Nimu J Mehta and Manish Mehta ... Complainants.

COMPLAINT NO: CC006000000192482

Alpa Jay Shah ... Complainants

COMPLAINT NO: CC006000000192493

Vikas Radhe Shyam Singh ... Complainant.

COMPLAINT NO: CC006000000192546

Mrs Vaibhavi Mhatre Marwah ... Complainants.
Mr Nitin H Marwah

Versus

JVPD Properties Pvt. Ltd. ... Respondents.
(Serenity- Bldg 1)

MahaRERA Regn P51800011181

Coram: B.D. Kapadnis,
Member II.

Appearance:

Complainants: Adv. Mr. Godfrey W. Pimenta.
Respondents: Adv. Mr. Alok Kumar Singh.



FINAL ORDER
18th February 2020.

The complainants have filed the complaints under Section 18 of RERA for getting refund of their amount paid to the respondents in respect of booking of their flats in respondents' registered project Bhagtani Serenity situated at Village Tirandaz, Taluka Kurla. The necessary information furnished by the complainants is as under-

Complainant/s	Flat No.	Amount Paid (Rs)
Mr Ankur Garg and Ms Sweta Garg	A- 2001	21,80,354/-
Mr Apurva Vinod Pandya. Mrs Madhuri Apurva Pandya.	A-3 - 2901 & A-3 - 2902	21,23, 061/- & 20,86,262/-
Chhagani Devi Nahata. Vijay Raj Nahata.	A-3 - 1202	6,87,345/-
Rohit Vijay Nahata. Buladevi Nahata	A-3 - 1201	20,87,573/-
Parshuram G Raturi Rajni Raturi	A - 401 & A- 402	26,15,000/- & 26,15,001/-
Udit M Sharma and Ritu U Sharma	C - 1301 & C - 1302	41,42,672/-
Sayed Hifazat Ali	C - 904	43,29,780/-
Branson D'Souza and Neelam D'souza	C - 2304 & C - 2504	57,73,040/-
Rupesh Keshav Patole.	A -1401	21,98,942/-

Darshana Rupesh Patole.		
Imran Shah Sakina Mustaq Ahmed Shaikh	C - 2204	33,48,750/-
Mrityunjay R Dubey	C - 1001 C - 1002	30,93,607/- & 30,93,607/-
Fathulla Eftekar	C - 3704	23,18,751/-
Nivas Mahadev Patil Pramila Nivas Patil	A - 2002	23,73,261/-
Rajendra Nikam	A-2 - 1801	20,17,987/-
Puja Dattaprasad Sadwelkar. Dattaprasad Sadwelkar.	A-3 - 1101 A-3- 1102	7,96,370/- & 7,82,567/-
Pankaj Arora Vishal Arora	C - 2103 C - 2104	36,35,718/- & 36,35,718/-
Kinnari Gupta Rakhi Gupta	A-3 - 1501	27,00,000/-
Amit Khandelwal Mamta Khandelwal	A-3 - 1502	26,53,200/-
Nimu J. Mehta Manish Mehta	A-3 - 701	12,00,000/-
Alpa Jay Shah	A-3 - 1601 A-3 - 2204	25,38,000/- & 27,00,000/-
Vikas Radhe Shyam Singh	B-1 - 1801	20,70,000/-
Mrs. Vaibhavi Mhatre Marwah . Mr Nitin H Marwah.	D - 1401	45,66,890/-



Complainants contend that respondents issued the allotment letters contending therein that respondents 'shall complete the construction within the period of 42 months from the receipt of final commencement certificate from plinth level if the clearances are not obtained within the period of 9 months with the grace period of next 3 months, the allottees shall be entitled to terminate the allotment letters and claim refund'. Respondents by their letter dated 24th July 2017 addressed to one Mr. Debashish Das, an allottee of the same project and relied upon by the complainants shows their inability to complete the construction and give possession as agreed. Respondents, made themselves liable to refund all the amount paid by the complainants with interest under Section 18 of Real Estate (Regulation and Development) Act, 2016 (RERA).

2. The respondents have filed the reply in some complaints and their learned Advocate submits to treat them as a common reply in all the complaints. Respondents contend that the complainants are the investors and they are not allottees because in Para 11 & 18 of the provisional allotment letters they have admitted that they are investors. The provisional letters for booking are subject to approvals and permissions to be granted by various authorities for construction. It is a contingent contract and therefore it cannot be enforced as the approvals and permissions required for construction have not been granted. Section 18 of RERA is not retrospective. Hence they request to dismiss the complaint.

3. Following points arise for my determination and findings thereof are as under:

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Points.

1. Whether the respondents failed to complete the project as agreed?
2. Whether the complainants are entitled to get back their amount with interest?

Findings.

Affirmative.

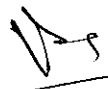
Affirmative.

Reasons.

4. In Neelkamal Realtors Suburban Pvt. Ltd. - v/s- Union of India (W.P.No. 2737 of 2017) Their Lordships of Bombay High court have held that sections 12 and 18 of RERA are retroactive. Allotment letters disclose the fact that the complainants agreed to purchase and respondents agreed to sell flats and therefore I do not find that complainants are investors. I find that they are allottees as defined by section 2(d) of RERA, hence this Authority has jurisdiction to entertain these complaints.

5. Complainants have relied upon the allotment letters issued by the respondents. On their perusal it becomes clear that the respondents made false statement/representation that the project is viable and it would be completed.

6. Complainants have not received the letter dated 24-07-2017, but they have relied upon the letter received by another allottee Mr. Debashis Das from the same project disclosing the fact that for various reasons mentioned in the said letter, it is not possible for them to proceed ahead with the project and complete it. Hence, the complainants have proved that the respondents have failed to construct and complete the project as agreed. Respondents have failed to complete the project due to its abandonment. Hon'ble High Court has also referred to such situation where the promoters can claim frustration when they are unable to complete the project for no fault of their



own, in the case of Neelkamal Realtors Suburban Pvt. Ltd. - v/s- Union of India (W.P.No. 2737 of 2017). In para 259 of the judgment, Their Lordships have mentioned that even in such a situation promoter will have to return the allottees' amount with interest. Hence the complainants are entitled for refund of their amount.

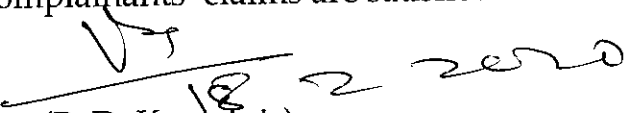
Entitlement of the complainants:

7. I have held that the complainants are entitled to get back their amount. They are entitled to get refund of those amount with the interest at prescribed rate from the date of payment till their refund. The prescribed rate of interest is 2% above the SBI's highest MCLR which is currently 8.25%. No separate compensation is pressed. The complainants are also entitled to get Rs. 10,000/- towards the cost of their complaints. Hence, the following order.

ORDER

- a) The respondents shall refund the complainants the amount paid by them mentioned in the table with simple interest at the rate of 10.25% per annum from the date/s of their payment till they are refunded.
- b) The respondents shall pay complainants Rs. 10,000/- towards the cost of their complaint.
- c) The charge of aforesaid amount shall be on the respondents' property under project bearing C.T.S. No. 63A/5 and 64D "S" ward of village Tirandaz, Taluka Kurla, Mumbai, till the complainants' claims are satisfied. Mumbai.

Date: 18.02.2020.


(B. D. Kapadnis)
Member II,
MahaRERA, Mumbai.

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.**

COMPLAINT NO: CC006000000192412.

Mr. Sudhir Kumar Singh and Meenakshi Singh ... Complainants.

COMPLAINT NO: CC006000000192432.

Mr. Alphonso Paul ... Complainant.

COMPLAINT NO: CC006000000192433.

Mr. Branson DSouza and Neelam Dsouza ... Complainants.

COMPLAINT NO: CC006000000192434.

Mr. Rupesh Keshav Patole
Darshana Rupesh Patole ... Complainants.

COMPLAINT NO: CC006000000192435.

Mr. Selvin Correia and Pinky Correia ... Complainants.

COMPLAINT NO: CC006000000192437.

Ms. Imran Shah
Sakina Mustaq Ahmed Shaikh ... Complainants.

COMPLAINT NO: CC006000000192438.

Mr. Mrityunjay R Dubey ... Complainants.

COMPLAINT NO: CC006000000192439.

Mrs. Smitha Anand Maroli
Suresh Anand Maroli ... Complainants.

COMPLAINT NO: CC006000000192440.

Mr. Fathulla Eftekar ... Complainants.

COMPLAINT NO: CC006000000192466.

Mr. Nivas Mahadev Patil and Pramila Nivas Patil ... Complainants.

Versus

M/s. JVPD Properties Pvt Ltd ... Respondents.

MahaRERA Regn: P51800011181.



Coram: Shri B.D. Kapadnis,
Member-II.

Appearance:

Complainant: Adv. Mr. Godfrey Pimenta.

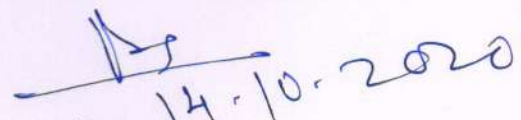
Respondents: Adv. Mr. Alok Kumar Singh.

ORDER ON THE RECOVERY APPLICATION
14th October, 2020

The complainants have filed applications reporting non-compliance of final orders passed in their complaints. The respondents appear through Adv. Mr. Alok Singh to contend that the Economic Offence Wing of Mumbai is investigating the matter based upon the report filed against the respondents and their bank account has been freezed by the police. Therefore, the respondents are not able to comply with the order, unless and until the Hon'ble Bombay High Court de-freezes their account by passing an order to that effect in suit no. (L) 570 of 2018.

2. The reason assigned by the respondents does not appeal to me because the respondents had an opportunity to satisfy the claims of the complainants even before freezing their account. They have also other sources which they do not want to tap for compliance. Hence issue recovery warrant under section 40(1) of the RERA.

Date: 14.10.2020.


(B. D. Kapadnis)
Member-II,
MahaRERA, Mumbai.